

THE REVIEW

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June, 1911

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VOLUME I, No. 6.

JUNE, 1911

THE REVIEW

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THE NATIONAL CONFERENCE

The national conference of charities and correction was held in Boston from June 7 to June 14. The committee on lawbreakers had the opening session, on Wednesday. Three section meetings were held by the committee during conference week.

The REVIEW prints in this issue many of the papers prepared for the sessions of the "lawbreakers," as they were facetiously called. Other papers will be printed next month. This is a small monthly, and some papers have been crowded out.

The keynotes of the "lawbreakers" sections were: (1) Need for the abolition of local and county jails as prisons for convicted offenders and the establishment in their places of state district workhouses or houses of correction; (2) full and impartial consideration by the national conference of the problem of prison labor; (3) more rational and adequate treatment of the mentally defective delinquent; (4) the imperative need of a change in our treatment of misdemeanants, especially vagrants, inebriates and offenders under the age of 21; (5) the necessity of standardizing the methodology of probation work; (6) the need of far greater organization of parole work; (7) the necessity of developing crime statistics and statistics regarding offenders so that records may be of real value.

Many other notes were struck. The spirit of the sessions was optimistic, but questions and comments were frank and searching.

The committee on lawbreakers has a very definite place on the program, even though, as this year, the name of the committee may be changed, the committee for 1912 being called "committee on courts and prisons."

During the conference strong sentiment was developed in accord with the recommendation of the committee on lawbreakers that prison labor be made an important part of the program of the conference for 1912. It was stated by members of the committee on organization of the conference that the matter was thoroughly discussed in the committee, and that the understanding was that the title of the committee for 1912 admits of the

introduction of this subject at the next national conference. It remains now for the members of the committee on courts and prisons to see that this subject is placed on the program.

The conference as a whole was characterized by the excellence of the papers, the fundamental nature of the topics discussed, the high-water mark in attendance reached, and the hospitality of Boston's representatives at the conference. Year by year the conference departs more from the technical discussion of institutions and methods, concerning itself increasingly with the problem of the general improvement of social conditions. The next conference will be held in Cleveland, Ohio, in 1912.

REPORT OF COMMITTEE ON LAWBREAKERS

National Conference of Charities and Correction, O. F. Lewis, General
Secretary of New York Prison Association, Chairman.

The Committee on Lawbreakers presents to the National Conference of Charities and Correction a partial survey of needs not yet met in the field of the treatment of the delinquent. In October, 1910, the eighth international prison congress met for the first time on American soil. Never before had this country been under so comprehensive or so discriminating a scrutiny by foreign criminologists. As one newspaper man put it: "The world's spotlight was turned on American prisons and American treatment of prisoners."

In April, 1911, Sir Evelyn Ruggles-Brise, the Chairman of the English prison commission, and president-elect of the next international prison congress of 1915, reported to his government. He commended in general American state prisons and reformatories, but condemned the systems, or lack of systems, in vogue in city and county jails. "Among the jails," he stated, "many features linger such as called forth the wrath of John Howard, the great English philanthropist, noted for his exertions on behalf of prison reform at the end of the 18th century. Promiscuity, unsanitary conditions, absence of supervision, idleness and corruption—these remain features in many places," says the report. "Until the abuses of the jail system are removed, it is impossible," concludes Sir Evelyn, "for the United States to have assigned to her by general consent a place in the vanguard of *la science penitentiaire*."

This is not pleasant reading, yet the question with us tonight is not whether this criticism makes us as Americans pride-sore, but as to the truth of this friendly but stinging criticism. On our program this evening we have a distinguished gentleman, son of the eminent American founder of the international prison congress, who will testify that the English comments of Sir Evelyn are mild as compared with the American reality.

Rome was not built in a day. As in Chicago you find still in immediate context the mansion and the hovel, we have, in our treatment of delinquents, in close juxtaposition the prison and the jail, the reformatory and the workhouse, children's courts and lynch law, probation and short term sentences, the indeterminate sentence and industrial prison idleness, parole and definite sentences, prison hospitals for tuberculosis and jail pens for syphilis-infected tramps. Civic pride in great modern prisons exists side by side with civic indifference as to filthy lock-ups or town jails.

At the beginning of the second decade of the twentieth century—the century of hoped-for social justice—let us face frankly certain problems yet unsolved in the treatment of delinquents. Far from feeling that we have reached the thumb-twiddling stage of complacent satisfaction, let us see where our methods still break down.

First, *the local and county jails*. Not stopping with the remark of Thomas Holmes at the international prison congress that “every jail I saw on the American trip ought to be wiped off the face of the earth,” and that nowhere in Europe do such conditions exist, we find Professor Charles R. Henderson as chairman of a special committee of the American Prison Association of Chicago in 1907, uttering a scathing arraignment of revolting and demoralizing jail conditions. We find Frederick H. Wines more recently in Maryland arraigning jail conditions in many parts of the country. We find Warren F. Spalding of Massachusetts writing in the Sage Foundation volumes on Correction and Prevention about the jail friendships that make of the novice a life long criminal, of the contamination of women prisoners, the herding of juvenile offenders with adults, the dearth of attention to physical conditions in jails, the deplorable lack of proper ventilation, the ravages of disease among jail inmates and the absence of that rigid vigilance without which the ordinary jail cannot be kept in a sanitary condition; overcrowding, night buckets, monotony, filth, poorly cooked or tainted food, unconvicted prisoners and convicted prisoners in unrestricted communication, the fee system, local inattention to the fundamental principles of penology.

The case against the average jail seems proved. Has not the time come to make a general national campaign against this “school of crime?”

Mr. F. G. Pettigrove of Massachusetts dissents from the above statements regarding jails as follows:

“I do not approve the unqualified general denunciation of jails. Nobody who is familiar with the Massachusetts jails would make such an attack upon them as is implied by the form of the reference to that subject.”

Prison Labor. Prison labor is an unsettled problem; one that we must face; a problem complicated by local and state conditions, and one in which the motives of men and even communities have often been impugned. Scanning the titles of papers read at the national conference of charities and correction during the last decade, we have found only in the committee report by Mr. Whittaker in 1908 and in the paper of Dr. James H. Leonard, Superintendent of the Ohio State Reformatory, definite and extended treatment of the prison labor problem, this fundamental problem of penology.

Has the problem been solved? Are prisoners everywhere earning their maintenance? Has any one system proved satisfactory? Is there general consensus of opinion that the prisoner shall not be utilized for private gain? Is there no demoralizing idleness in so-called model prisons? Is there no high tension labor in so-called model prisons?

No, prison labor has not reached a satisfactory solution when we can still cite a recent article of Dr. A. J. McKelway in Volume II. of “Correction and Prevention” regarding prison labor in the South: “The leasing of convicts whether to corporations or individuals, is a system that has been abolished by some of the southern states, but which still prevails in some of the states, accompanied as it always has been with indefensible abuses (p. 72). I make bold to affirm that such abuses as were found to exist in Georgia will be found to exist in a greater or less degree in every state where the leasing system still prevails.”

We learn that in Alabama even the wardens and the guards are employed by the contractors. We find that in Ohio in connection with the discontinuance of contract labor and the development of the State use system the state penitentiary was plunged into the most deplorable idleness. We find in Pennsylvania an archaic legal compulsion to utilize only hand power machinery, and but thirty-five per cent of the prisoners at any one time. We find under the present status of the state use system in New York that the

State prisoners earn only about one-fourth of the cost of their maintenance, and a nominal sum of not more than 2c. a day, which earnings can be radically reduced by fines. We find loud protests in Rhode Island because the State lets the services of able bodied prisoners to contractors at 30c. a day, and we find in Maryland under the contract system a penitentiary which is said to have returned to the State treasury in 1910 a surplus of thirty-five thousand dollars from the earnings of prisoners, while the over time work earned for the prisoners themselves \$41,928. We find the Detroit House of Correction on the State account system earning a profit in 11 years of \$368,000, paying its prisoners from ten to twenty-five cents a day wages, and planning to distribute to the families of prisoners, through the city poor master, \$15,000 during the year 1911 in addition to the surplus which it expects to turn over to the city. We find the Minnesota State prison under the State account system making the following report for the last ten years:

Total earnings	\$2,210,880
Total expenses	<u>1,199,248</u>
Excess of earnings	\$1,011,632

The binder twine plan in the ten years has made a profit of \$1,653,290, of which \$352,553 was paid to the support fund for convict labor. Quoting again from Dr. McKelway, we learn that in Texas the convicts are worked on the leasing, contract, public account and public works system. "But a legislative investigating committee has recently discovered horrible abuses in all these systems. A number of convicts were found who had been literally beaten to death during the last year (1909) and the prisoners seemed to dread the prison farm as much as work within the prison wall, if not more."

We find Warden Gilmour of the Toronto Central prison stating that on the prison farm of that institution the inmates work cheerfully and without guards. And so, ladies and gentlemen, your Committee on Lawbreakers respectfully suggests that the general subject of prison labor, in its various phases, be made the chief subject of this committee at the next national conference. Prison labor is not simply an administrative problem; it is an industrial problem and a health problem, and concerns vitally the training and efficiency of scores of thousands who, leaving prison, are potential

subjects for charity of a public or private nature. It is a vital problem for the national conference of charities and correction as well as for the American prison association. The problem of the proper utilization of prisoners is a fundamental problem in every American state.

The fact that a separate organization, the National Committee on Prison Labor, has been established to study the prison labor problem, and the further fact that the newspaper and magazine press has manifested much interest in the field which this committee occupies, are evidences of the extent and importance of the field.

Frank L. Randall, General Superintendent of the Minnesota State Reformatory and a member of the Committee on Lawbreakers, makes the following suggestion:

“If the recommendation of the Committee on Lawbreakers be adopted to make the subject of prison labor a feature of the next conference the leaders of organized labor should be invited to participate. We should ask the labor representatives, if they urge the state use plan, to concede to the prisons the field, so far as the products are paid for with public funds.”

The Treatment of Defective Delinquents. There are undoubtedly thousands of feeble-minded persons in correctional institutions. In recent annual reports, of Elmira Reformatory, it has been stated that about 35% of its inmates are mentally defective. The presence of the feeble-minded is a detriment to many plans that have been adopted for the instruction and training of prisoners. The complete exclusion from the ordinary prison of persons afflicted with tuberculosis has improved the healthfulness of those prisons and has also supplied a better and more hopeful means of treatment for the unfortunate sufferers. The same treatment—segregation—should be applied to all those to whom special treatment would be a benefit, or whose ailments are of such a nature as to endanger the welfare of others. Dr. Henry E. Goddard of Vineland estimates that 25% of delinquents are mentally defective. “All mental defectives would be delinquents,” he states, “in the very nature of the case, did not some one exercise some care over them. The mentally defective must be cared for as we care for irresponsibles.” Mr. Ernest K. Coulter, for many years clerk of the Children’s Court of Manhattan and Bronx, New York City, states his belief that the most important step to be taken by the state in its slow abandonment of

antiquated methods of dealing with child offenders and victims of bad environment and neglect must be the establishment of institutions for the special treatment of the mental defectives of this class. In the great state of New York, there is no special custodial institution to which the criminal feeble-minded can be committed and transferred. So important is this matter, that it has been made the subject of one of the section meetings of this Committee on Lawbreakers.

Parole. The principle of parole is a fundamental complement to the principle of the indeterminate sentence. Its successful application requires an efficient merit system within the prison, a competent parole board and adequate supervision of the post-prison parole period, the co-operation of the employment giving public, and the persistent following up, recapture and reimprisonment of wilful violators of parole.

Only in a most general way do we yet know the results of the administration of parole systems in the country. We find a general belief based on long experience and some careful study of prison statistics, that about 75% of paroled persons from reformatories or prisons “stay straight” during the parole period. We still lack any study of sufficient magnitude to admit of generalization in the case of any state as to the proportion of criminal recidivism *after* the parole period. The New York Prison Association will shortly make public an extended study of the careers of seven hundred inmates of Elmira Reformatory, yet this number, though intensively studied, will be too small for any comprehensive generalization but will rather indicate both a statistical method of study of criminal careers and the great inadequacy of present institutional or extra-institutional social facts and social statistics of delinquents.

As regards post-prison treatment and aid of the released or discharged prisoner, we find Amos W. Butler in Volume II of the Sage Foundation series on “Correction and Prevention” reporting that only about 24 organizations exist throughout this country for this purpose, though several of these societies spread their activity through a number of states. We find also very varying periods of parole, some of six months as at Elmira, some of seven months, as at Huntington, Pa.; nine months, as at the Illinois State Reformatory, or until the expiration of the maximum sentence, as at Concord, Mass., or at Bedford, or Albion in New York. We find in Mr. Butler’s study state after state recorded as follows: “State makes no effort to

find work or keep in touch with prisoner after his discharge;" "no provision for aftercare of either paroled or discharged prisoners;" "no parole officers;" "no parole agents;" "no provision for finding work or for visiting prisoners," etc., etc.

A prominent eastern reformatory superintendent recently said: "Why spend nearly two hundred dollars annually to maintain one inmate in a reformatory, and then spend only \$1.50 per inmate during his period of parole to help him not to go wrong?" This committee on lawbreakers believes that the parole period of an offender is barely second in importance to the period of imprisonment. The poorly supervised parole period breeds recidivism, contempt for law, the alienation of the sympathy of judges, the irritation and criticism of the public, unintelligent scorn for reformatory methods, and immense ultimate cost to the state in further loss of property or life.

The Probation Movement, long known and developed in Massachusetts, has during this last decade made great national progress. Nevertheless the probation movement faces grave dangers. It is on the defensive. The methodology of probation is still in the experimental stage. More important than the extension of the system is the building up of an effective technique. In too many places probation is still synonymous either with sentimental leniency or with perfunctory police surveillance. The most essential factors in probation work are the educative, reformatory and reconstructive work represented by home visitation, the development of right mental habits and the rendering of practical assistance.

The improvement of probation methods depends primarily upon the appointment of interested, faithful and competent probation officers. The tendency is strongly in the direction of increasing the number of public salaried probation officers. Although this tendency is inevitable and desirable, it brings in its trail the gravest danger of which the probation system must meet, namely the danger of appointments being made through the influence of partisan politics. Those interested in the probation system should therefore look squarely in the face the question as to how probation officers should be appointed; whether by judges without interference by any outside regulations or authorities; whether through civil service examination; whether upon the approval of some outside body such as a state probation commission, or whether the appointing power should be

vested in authorities other than the judges, as in local non-partisan, non-sectarian committees or commissions.

Ex-Attorney-General Julius M. Mayer dissents from the foregoing paragraph as follows:

“I am opposed to the appointing power being placed in anybody except the judges, which, to my mind, leaves open only the question as to whether examinations should be competitive or non-competitive.”

In a further letter Judge Mayer writes:

“There cannot be any discussion as to who should appoint probation officers. It is absurd to say that any person outside of the judge should appoint. I personally should refuse, if a judge, to place anybody on probation if the probation officers were appointed by any one but the court or judge. As a matter of fact I doubt seriously whether in New York State there would be any legal power in any other body to make any such appointment. The suggestions, in this regard, are, to my mind, utterly absurd and unworthy of being dignified by being incorporated in our report.”

A problem in administrative efficiency that must be worked out is the co-ordination of probation and parole systems. There seem no valid reasons why in general the same persons cannot do both probation and parole work in the same localities. At present parole supervision is usually exercised by persons who are not probation officers and often the parole officers are itinerant officers obliged to travel over wide areas. The effective supervision and aid of those on parole requires that those exercising the parole oversight shall confine their efforts to a comparatively limited area. The efficiency of parole service would undoubtedly be greatly strengthened in communities where it is not practicable to have special parole officers, if the parole work were entrusted to the local probation officers. This combination of work, if properly carried on, can be carried on with mutual advantage to both systems and without any detriment to either of them.

The Wives and Children of Prisoners. The dependency of these often innocent victims of the delinquency of the breadwinner is closely allied to the problem of prison labor. Any plan is paradoxical that removes a breadwinner to prison idleness and leaves a despairing family to exist by

charitable help or by the bounty of impoverished neighbors. The state having the right to protect itself from crime by imprisoning the offender, has also the duty to make work for him, first to pay for his own maintenance, and secondly, to contribute, so far as possible, to the maintenance of his family. No explanations of alleged necessary idleness, of lack of orders for prison goods, of political interference with extension of prison labor systems, or of the need of the payment of prisoners' earnings to a tax-ridden state should prevail against the fact that the state or the political subdivision of a state owes to the stricken family the partial fruits of the toil of the prisoner and *must* develop such a system of industry as will both make the prisoner self supporting and bring to his family some return for his labor. Inability to accomplish less than this is a confession of state-inefficiency that should not be tolerated and that invites the fullest scrutiny.

Farm Colonies. The campaign for compulsory farm colonies for habitual tramps and vagrants has gained much impetus since 1907, when the problems of vagrancy were discussed in detail, at the Minneapolis national conference of charities and correction. In a half dozen states farm colony bills were introduced last winter, but none were passed. The press seems almost unanimous in favor of such colonies; public opinion is expressing even greater annoyance at the so-called "tramp-army." Typical of the dissatisfaction with the present expensive and palliative treatment of vagrancy is the reiterated statement of the New York State Board of Charities that vagrancy costs the state of New York about two million dollars a year from public and private charitable funds.

The time certainty seems at hand for a systematic campaign against the vagrancy evil. Drifting methods of alleviation and of passing-on constitute only an aggravation of the situation. Vagrancy and crime are closely akin. The Committee on Lawbreakers raises the question whether the movement partially organized several years ago for a national vagrancy committee should not at this session of the national conference be organized with the aim of furthering systematic methods for the reduction of vagrancy. A problem in European countries sufficiently serious to be called one of the most fundamental social problems deserves systematic and adequate attention in the United States where the problem is still in its earlier stages.

Closely allied is the great problem of inebriety and its treatment. The special United States census of 1904 showed that 54% of all commitments

to correctional institutions were due to intoxication, vagrancy and disorderly conduct. A special committee of this national conference of 1911 treats of this national question in a general session and in section meetings. The committee on lawbreakers emphasizes the pressing immediate need of state and national campaigns for the reduction of drunkenness and the rational treatment of the drunkard.

Prisoners' Aid Societies. Organized charitable work of private societies in the correctional field is woefully slight in comparison with the charity organization movement for the spread of the gospel of social service. There are hardly a score of active prisoners' aid societies of fairly wide range in the United States. Yet the great movement for probation and parole, for better prisons and for better prisoners, for the help of released prisoners and for dependent families of prisoners, for the reduction of vagrancy and inebriety, for the better care of the mentally or physically defective delinquents, for better laws and greater public information—these great movements need the directing power of strong charitable organizations of the prisoners' aid kind. The field of delinquency needs the same thorough development that in the last generation has been accorded to the field of charity. A national prisoners' aid society was organized at the last meeting of the American Prison Association, to develop greater co-operation between the now existing prisoners' aid societies and to extend the prisoners' aid work. The national association publishes a monthly journal of sixteen pages called the Review.

American Criminology. Tendencies in this country in the problems of the treatment of the criminal have been overwhelmingly administrative rather than analytical and academic. Our foreign guests in 1910 often remarked that we characteristically experimented and did things rather than debated and philosophized on the theories of criminology. The extravagance of sole adhesion to the former method is increasingly obvious, however, and has led, among other things, to the organization of the American Institute of Criminal Law and Criminology, a central body for the inculcation of more scientific methods for the treatment of the delinquent as well as for the extension of our knowledge of the criminal. A recent conference in New York City on the reform of the criminal law and procedure indicated the wide-spread belief of the ablest members of the bench and bar that our criminal law and its administration need radical reforms. In the fields of

criminal statistics, also, we need far more light even if such light shall only indicate clearly that comprehensive and accurate criminal statistics are practically impossible to collate. To the efforts of the American Institute of Criminal Law and Criminology to advance in accuracy, in dignity, and in usefulness our store of information as to crime and its treatment, the national conference should give full credit and strong encouragement.

THE SUPPRESSION OF MORAL DEFECTIVES

Abstract of Address of Charles W. Eliot, President Emeritus of Harvard University

The prevention of crime through the isolation or extirpation of criminals offers many analogies to the prevention of disease by the isolation or death of diseased persons. These analogies are obvious, and are based on observed facts and not on any theory that all moral defects originate in, or are caused by physical defects. Opinions might differ widely concerning the bodily origin of drunkenness, inordinate sexual passion, or kleptomania; and yet persons holding different views on this point might agree as to the wisest treatment in practice of such moral delinquents. Let us compare society's treatment of moral defectives with its best treatment of physical defectives. In the first place, a large proportion of the crimes committed in our country are not treated socially at all, the criminals escaping detection and arrest, or being acquitted when brought to trial through the ingenious use of legal technicalities and delays. This is as if victims of scarlet fever or smallpox should be left quite free to move about in the community so far as their condition permitted, society manifesting no active interest in their welfare and taking no precautions whatever against the spread of their disease.

Secondly, in cases in which criminals are arrested and convicted the penalties imposed by courts have, as a rule, no remedial and no preventive effect. Drunkards, for example, brought frequently before courts for sentence, are sent over and over again to jails or houses of correction for terms too short for effectual cure, so that they soon relapse into drunkenness when discharged. Or again, a burglar is sentenced to a few years in prison, acquires while confined no better disposition and no new means of earning a livelihood, and so when freed naturally returns to his former criminal mode of life.

Thirdly, many researches into the history of criminal families have made it sure that the propensity to crime, be it moral, or physical, or both, is eminently transmissible; so that criminals, like imbeciles and other physical

defectives, will surely breed their like, if left free to do so. To leave them free is to perpetuate and multiply by inheritance the evils and losses which criminality inflicts on the race. These comparisons suggest strongly that society needs to revise its methods of dealing with criminals. In this revision, what improvements should be aimed at? Better police protection, especially in the detective department, so that fewer crimes should be committed with impunity. This would correspond with the improving registration and responsible social treatment of diseases.

A lessened use of fines and an increased use of imprisonment for convicted criminals of all sorts, a fine being an almost useless penalty for crimes against the person, since it has no improving or instructive quality whatever, is for the well-to-do a matter of indifference and is often impossible to collect from the poor. The habitual use of longer terms of imprisonment, that is, terms of isolation and temporary exemption from temptation to crime. The conversion of houses of correction, jails and prisons into places of instruction and of instructive labor, with incidental confinement, from being places of confinement with incidental labor, which is often unproductive or impossible of utilization by the individual on his return to the outer world. Through this transformation houses of correction and prisons would become agricultural or industrial colonies, in which most prisoners would acquire the habit of productive labor and some skill available towards livelihood when they should again enjoy freedom.

Every person, male or female, who has been convicted of crime, should be registered at many points with complete means of identification, and should be kept under supervision for a long period after discharge; and the new laws needed to secure such continuous supervision, if any, should be promptly adopted in all the States. With such systematic supervision should go assistance in the giving of employment.

THE ABOLITION OF THE JAIL

Synopsis of Address by Frederick H. Wines, Statistician, State Board of Administration, Illinois.

The average county or municipal jail in this country is a school for crime, a cesspool of moral contagion, a propagating house of criminality, a feeder for the penitentiary, a public nuisance and a disgrace to modern civilization. The public indifference to the situation is attributed partly to ignorance. The county officials do not know what a jail should be and the people do not know what their jails really are. In plain Anglo-Saxon, the truth is that wherever there exists local graft and political dishonesty the county prison is its centre and its stronghold. The sheriff or the jailor makes a personal profit from crime by charging a per diem for board for prisoners and by the receipt of fees for locking and unlocking the jail doors. That profit is a live wire. No local politician, possibly no member of the Legislature or even of the State administration dares monkey with it.

We have substantially won the fight for the reformatory State prison and the indeterminate sentence because we concentrated our fire upon a vulnerable point and made every shot tell. In attacking the county jail system we have pursued the opposite policy. We have addressed our arguments and remonstrances to the county authorities, of whom there are in round numbers, 2,500 sets, instead of to the legislative bodies, of which there are less than fifty. We have pleaded for new jails, better jails, when we should have demanded their replacement by prisons owned and controlled by the State and their emancipation from local political control with its petty and selfish interests.

There was a time when local control was necessary and proper but that was long ago. Today the county prison is an anachronism. We imported it with other institutions from England, but conservative England has outgrown it and dates the dawn of its regenerate prison system from the year of its abolition. There is no good and sufficient reason why the State which enacts a criminal code with its definition of crime, its prohibitions and its penalties should assume the custody and care of the man committed to prison for

three years and refuse to recognize its responsibility for the man sentenced for three months, abandoning him to the haphazard mercies of the inferior jurisdiction which is certainly ignorant, often brutal and sometimes dishonest. It is not the majesty of the county but that of the State which calls for vindication. The supervision of crime, let it take what form it may, is the business of the State. The State should name, and it should have exclusive authority over the executive agents to whom it entrusts the discharge of this supreme governmental function.

The one hope of enlightened progress in dealing with the problem of crime is the overthrow of the county jail system. To this end we must direct our energy. With the State once in command, there can be no question but it will find a way to right the wrong and remedy the evils which inhere in the present organization and management of minor prisons.

MENTAL DEFECTS AND DELINQUENCY

WM. HEALY, M. D.

Director, Juvenile Psychopathic Institute, Chicago

Reasons for the abundant ineffectiveness in the treatment of the criminal are to be found in the historical development of the situation. His case is handled by court procedure evolved, almost wholly, from legal precedent and consisting of rules which appertain, as it were, to a definite contest. As the result of this evolution it has come about that even modern criminal procedure in several respects fails to apply well established scientific knowledge and so lags far behind the dictates of common sense.

It may be that the experiential wisdom of the ages, crystallized into modern law, serves well enough as the setting for criminal trials in which there is much presumption of innocence, as well as for civil cases, although in this hour of testing mental capacities even some points here seem doubtful. But what shall we say about the trial of recidivists, those repeaters who make up the costly and dangerous class, the confirmed criminals? If there is anything clear about the matter to the man in the street it is that certain facts either purposely avoided in court procedure, such as inadmissible evidence, or not brought out on account of incomplete examination into the case are frequently most important for decision from the standpoint of the welfare of society and indeed often of the defendant's own well-being. The fact that the defendant has been convicted of crime and perhaps of this particular type of crime before, that he has mental peculiarities or physical infirmities that make him specially liable to commit crime, that he comes from a family in which mental deficiency is inherited or the criminalistic tendency is rampant—these points among others are not only of scientific import, but seem clearly germane and most valuable for deciding what ought to be done with him.

The facts of recidivism are startling enough to command attention—whether one's interest in the matter be economic, legal, humanitarian or anthropological. The terrific cost of crime, the failure of court methods to check criminalism, either in the individual or as a whole, the impotency of

ordinary penological efforts and the considerable inadequacy of even the best reformatory type of institution are causes for amazement. By even a superficial glance at the facts we are thrown at once into an inquiry, what manner of a person is this recidivist, this individual who in spite of admonitory teachings and punishments goes on pursuing a career which leads him into just the situation which he wishes to avoid. Justice Rhodes of England writes an article in a medical journal, putting up the matter squarely to the medical profession, asking them what it means when out of 182,000 convictions in a year, 10,000 have been convicted more than twenty times before. "On the face of it," he asks, "doesn't this seem more like a problem for those who have to do with abnormal personalities than merely for the law?"

Even if a statistical survey of crime and recidivism did not point directly in explanation to the peculiarities of the unit offender, it would in general seem as if the anthropological outlook, applied to the criminal himself, would be easily the best point of vantage in studying the crime situation. Here is a given individual, performing acts inimical to his fellows and retributively painful to himself. What leads him socially to react thus and so? Taking this view, common sense would seem to demand study of the causative factors in every case, and this means, first and foremost, investigation of those mental characteristics which underlie conduct.

Beginning such a study of the causative factors of crime and taking account of deviation from the normal among the criminalistic, we immediately see that mental defect looms very large. Just how extensive this factor is we are unable to say, because thoroughgoing examinations of delinquents have not yet been registered in sufficient numbers. Sutherland, who has had a large experience and has well considered the matter, states in his work on Recidivism (p. 50) that it is not wide of the mark to say that one-third of criminal recidivists are pathological specimens, "suffering from physical and mental degeneracy characterized by mental warp, instability and feeble-mindedness," and that of petty offender recidivists it is equally safe to hold that two-thirds are pathological in the same sense. The British Royal Commission for the study of the feeble-minded looked at 2,300 prisoners in cursory fashion and without mental tests decided that they could determine about ten per cent. to be feeble-minded. Incomplete work from many sources testifies to considerable proportions of feeble-minded among criminals. We

ourselves, in our Chicago Institute, are for several reasons doing fairly intensive work, and I would at once disclaim that our figures have much statistical value. Yet of 620 cases of youthful repeaters carefully studied by us and classified in a scale of mental ability and peculiarity, twenty-six per cent. grade distinctly below the class which we call poor in native ability.

We found:

Mentally subnormal—a class above the ordinary institutional feeble-minded types, but still well below the normal.	51
Dull from physical causes, including epilepsy.	36
Feeble-minded of the upper or moron group.	48
Feeble-minded of the imbecile group.	5
Psychoses (various types of mental disease).	22
	162

Scattered for the most part through these classes we found 7½ per cent. of the total 620 to be definitely epileptic.

What a curious maladjustment it seems that while all this acknowledged social failure is in progress, and while there is this obvious incompetency of legal methods in ascertaining adequate facts for betterment of the situation, there should be so very little study of where the trouble lies. In courts for adult offenders there is almost no opportunity for unbiased investigation of the individual criminal. In the juvenile court, with its advantages of intimate relationships established there, how can the judge from his short examination determine even this question of the mental status of the delinquent? Opinion on this subject in courts is formed by the questionnaire method, which from a scientific standpoint, for various reasons, is notoriously unsafe. Not only in court room procedure is there inadequate investigation of the individual, but all through the situation in regard to the handling of delinquents the same is true. Nowadays when the value of efficiency bureaus is everywhere recognized, it seems strange that this most business-like bit of work should not have been taken up. The outlay is millions and hundreds of millions for repression, but practically nothing for the study of how efficiently to repress.

In the past the legal disposition of offenders with mental peculiarity has very largely hinged on the question of criminal responsibility. Now this question, especially in the case of high-grade mental defectives, involves some pretty fundamental philosophical points and probably this most dangerous class will never have its responsibility completely standardized and determined. We have in sight no likelihood of finding a test or criterion of the power of ethical discernment and control. The best thinkers have finally relegated the whole problem to the common sense of juries. But a much more profitable way of looking at the matter is whether or not the individual is going to do it again, whether he is going to become a recidivist, a menace to society, and whether he is to breed progeny of the same ilk. The self-protection of society is herein involved. Why should we not drop the technical and hardly decidable question of criminal responsibility and the idea of mere punishment, and take up the much more vital problem of how society is to protect itself?

Looked at as a matter wherein the welfare of society is the chief concern, one most difficult point in the problem of mental defect grows more readily soluble. I speak of those cases in which evidence of feeble-mindedness, although distinct, especially if studied by means of tests, is minor in degree as compared with the ethical defect present. These form a class of offenders most difficult to deal with because so frequently, on account of good development of language ability, they pass in the world in general, and in courts in particular, as practically normal individuals. This type has been designated by various terms. Anton has recently published a symposium monograph on the subject showing that the consensus of opinion is that there certainly exists a distinct group in which moral defect is out of proportion to the amount of mental subnormality. The recent report of the Massachusetts commission on the increase of criminals emphasizes this very point. To those who doubt the existence of mental defect in such cases I commend the use of psychological tests. Better study of the individual will, in any case, give some indication of that most important point for the welfare of society, namely, whether or not the crime will be repeated.

Turning in the interests of society to the study of the individual offender, especially the recidivist, we shall at once be led by practical considerations into an attempt to decipher the causative factors of his career. The great value of such intelligent study can be shown in many types of cases, but

nowhere is it more evident than when the offenders are mentally defective. The recent work of Miss Moore for the Public Education Association of New York shows the after-records of some children formerly in the subnormal rooms in the New York public schools and also of some of the feebleminded men who were paroled from the Elmira Reformatory to New York. The financial and moral cost to the community has been very great from such sources. We ourselves have many such records, showing the terrible burden a criminalistic defective is to the community. Dozens of times, indeed up to a hundred times in the police stations, is the record of even some of the younger members of this group, as we have observed them.

Intelligent study of the problem of recidivism means catching the repeater as early as possible and making a diagnosis and prognosis for disposal of his case at once or in the future. The advantages of studying the recidivist when young are many, both from a scientific and a reformatory point of view. It is often also of immense importance to study the adult repeated offender. The disposal of him offers more difficulties frequently than the adjustment of the juvenile case. There is one matter in connection with adult offenders upon which I wish to lay special emphasis. It is in regard to the parole of criminals. It seems clear to me that if the whole matter of adult probation is to be placed upon the most sensible basis, the scientific facts which have bearing upon the situation must be brought into use. I hold that no criminal should be released upon parole until enough of a study has been made of his individuality and the causative factors of his delinquency so that there may be some sort of a guarantee that his offenses will not be continued. As it stands, almost nothing of this sort is being done. It should be the first and main inquiry of any board of parole to know whether or not the individual under consideration is likely to be a recidivist. Several points of view would be connected in such an inquiry, but the point we are concerned with today is one of the greatest value for the decision. The first question to be asked, if the matter is to be sensibly decided, is about the mental status of the individual. This inquiry with its various ramifications will often be found of great significance in answering the vital question: "Will crime be committed again by this individual?"

Intelligent study of an actual or a potential recidivist means a fairly complete investigation and is worth days of work if this be necessary. It

needs a combination of the sociological, medical and psychological standpoints. We ourselves find particularly rich fields for explanation of the case in getting the history of families and of developmental conditions and in psychological examinations. The latter has been much hampered in the past by lack of practical tests, but of late these have been developed. At the present time any intelligent observer can judge something of the mental capacity of an individual by seeing his performance, under proper conditions, on a group of tests which correspond to the normal ability of the child. The well-known Binet tests, imperfect though they probably are in some respects, form an epoch-making advance in the study of feeble-mindedness. We ourselves have been at much pains in the last two years in developing, with the help of a number of psychologists, a group of tests directed to the estimation of native mental ability in older and higher types of individuals. We may hope for much greater standardization of tests in the future, but, even as it now stands, there can be no doubt that just such a practical mental classification as the work with delinquents demands can be readily carried out by qualified persons.

If, avoiding *a priori* standpoints, we enter upon a study of the recidivist, we find such a considerable number of causative factors determinable that this at once precludes the idea of crime being anything like a disease entity. Indeed, one soon comes to feel that many of the set notions about crime are academic and absurd in the light of facts ascertainable by a free-minded, practical and thoroughgoing investigation of the individual cases. Crime may be the action of a Charlotte Corday or of a Jesse Pomeroy and in form, impulse and factors of underlying causation may be found to be so varied in its manifestations that many pseudo-philosophical speculations and legal pronouncements on the subject are readily seen to be nothing but slipshod generalizations. Quinton, a man of great experience, in his recent work says, with apparently purposeful exaggeration, that there are just as many classes as there are criminals. Mental defect is to be considered simply as one of the causes of crime, but it is a cause so obvious, so readily determinable in most cases and so certainly irremediable and provocative of recidivism and moral contagion that one of the first steps of reform in dealing with criminals ought to be directed toward this. The mental defective is suitable neither for probation, reformatory education nor punitive measures. Custodial care alone is of service and in the case of the

criminalistically inclined defective the courts should directly commit and the state protect itself by permanent guardianship.

The time is ripe for better methods of handling this class of cases. The study of recidivism shows it as a blot upon our civilization, and demonstrates that many recidivists are mental defectives. The study, on the other hand, of the individual defective criminal demonstrates him to be a source of great financial loss and much moral contagion. Studies in heredity prove that he frequently begets his kind. Developments along medical and psychological lines have given us practical methods for diagnosis of mental defectives—even the border-line cases being easily determinable as such—and give us assurance of the social future of this class of cases. The work of our own institute proves not only the applicability of common-sense study of causative factors in general to court work in this country, but directly demonstrates the overwhelming value of early differentiation of a type of offender, who by the very nature of his mental make-up is bound under ordinary social conditions to become a recidivist.

In order to get a more business-like administration of criminal affairs so that there may be practical application of at least some points which are scientifically demonstrable as imperative for the well-being of society, certain things are necessary. Concerning our immediate point, the needs are: first, better education of everybody implicated in the criminal situation as to the part that mental defect plays in delinquency. Then in connection with criminal courts, and especially in connection with juvenile courts, where the development of crime can be checked, there should be thoroughgoing study of the recidivist. The court should be acquainted with the practical value of such study and should act on it. No offender should be allowed on parole unless he is known to have the mental make-up which, on the whole, will in his environment tend to prevent his freedom from being inimical to society. Then, not a difficult matter to insure, there must be better classified institutional treatment. Finally, the court should have the power to adjudicate cases of mental defect in the best interests of society.

TREATMENT OF THE MENTAL DEFECTIVE WHO IS ALSO DELINQUENT

DR. HENRY H. GODDARD, VINELAND, NEW JERSEY

Twenty-five per cent. of delinquents are mentally defective. While we have no absolute statistics, there are many indications that this is a safe estimate. All mental defectives would be delinquents in the very nature of the case, did not some one exercise some care over them.

There is only one possible answer to the question, "What is to be done with the feeble-minded person who is delinquent?" He must be cared for, but he must be cared for in a place where we care for irresponsibles. The jail or prison or reformatory, is not for him, neither must he be turned loose on the streets or sent back to the home and environment in which he has already become a delinquent.

In the present state of our laws and customs, delinquency is the one means by which we are able to get hold of a certain type of mental defective and provide for him as he should be provided for. Many of these feeble-minded of the moron type come from homes or have attained to such an age or position that we have no way of getting hold of them until they do some wrong and come under the head of delinquents. But when that has happened and we have them where we can prescribe for them, it is worse than folly for us to let them go and turn them back into their former environment where they must only repeat the offense or even commit a worse one.

We must have enough institutions or colonies for the feeble-minded to care for all the feeble-minded delinquents at least. As it is today, even under the best conditions, many a judge recognizes mental defect in the cases that come before him and would gladly send the child to an institution for the feeble-minded, but there is no room, and so he is compelled to utilize some makeshift which oftentimes is worse than nothing at all.

But the broadest treatment of this topic must go farther back than the question of what to do with these feeble-minded persons who have already become delinquent. We must consider the cause here as we are trying to do

everywhere in modern methods, and treat the cause rather than trying to cure. In other words, the feeble-minded person should be taken care of before he becomes a delinquent. Here the first problem is diagnosis. How shall we recognize this feeble-minded child of high type, this moron grade, as we now call them?

Until recently we have been more or less helpless in this matter, but now we may say with perfect assurance that the Binet tests of intelligence are entirely satisfactory and can be relied on to pick out the mental defective at least up to the age of twelve years. The public schools will be the clearing house for all these cases, they may there be tested and their mental condition found out, and they can then be cared for as condition leads. We have too long attempted to treat all children alike, whether in the public school or before the courts. When we have learned to discriminate and recognize the ability of each child and place upon him such burdens and responsibilities only as he is able to bear, then we shall have largely solved the problem of delinquency.

PLACING MISDEMEANANTS ON PROBATION

JAMES A. COLLINS

Judge of the City Court, Indianapolis, Indiana

In the city campaign of 1909 I pledged the people of the city of Indianapolis that if elected judge of the city court, I would introduce a probation system as a means of helping delinquent men and women. The enactment of a law by the legislature of 1907, under which courts may exercise the right to suspend sentence or withhold judgment in the cases of adults, made possible the application of a probation system in the administration of justice in circuit, criminal and city courts.

The probation system inaugurated in the city court of Indianapolis has covered:

The Suspended Sentence.

The power to suspend sentence has saved many novices in crime from undergoing the harsh punishment that would be otherwise meted out to them, and that seems to be contrary to the constitutional provision that "all penalties shall be proportioned according to the nature of the offense."

During the past year sentence has been suspended in 236 cases and judgment withheld in 3,474. The majority of these were first offenders. In those cases where the judgment was suspended, the court has had to set aside the suspension of sentence and commit the defendants in only two cases, and where the judgment has been withheld less than two per cent. have been returned to court for a second or subsequent offense.

While there is no provision under the law for the employment of paid probation officers, adequate supervision in 352 cases was made possible by good citizens volunteering to serve in that capacity. These probationers were required to furnish the court a monthly report signed by the probation

officer. Time will not permit the details of these reports. Each tells its own story of heroic efforts toward right living.

Paying Fines on Installments.

The old method of collecting money fines which compelled the defendant to pay or replevy the same moment he was fined was always a source of great hardship on the poor. It was unreasonable to expect a common laborer arrested late at night and convicted in the morning to be prepared to settle with the state. If he was unable to pay or make arrangements to have his fine stayed for the statutory period, he was sent to prison, not because the court had given him a term of imprisonment, but because he was poor, which is in effect, imprisonment for debt.

To aid this particular class there was introduced as a part of the probation system a plan for the collection of fines in small payments. In those cases where the defendant appeared deserving he has been released on his own recognizance and the case held under advisement for thirty to sixty days, as the circumstances seemed to justify, at the expiration of which time he was required to report to the court that he had paid in the amount designated as the fine and costs to be entered against him.

At the close of the year 830 persons had been given an opportunity to pay their fines in this way. Of this number, 64 were re-arrested and committed for their failure to pay their fine, and the affidavits in 32 other cases are held for re-arrest. The balance lived up to their obligation with the court and paid in more than \$7,100.

This plan operates to the benefit of the defendant in several ways: it saves him his employment; it saves his family from humiliation and disgrace, as well as from the embarrassment incident to imprisonment; but more than all, it saves him his self-respect. With but a single exception not one to whom this opportunity has been given and who had paid his fine in full has been in court a second time.

Drunkenness and the Pledge System.

No unfortunates appeal more strongly to the court than the victims of the liquor habit. In all cases of first offenders charged with being drunk and in those cases where the defendant had others dependent upon him for support, the court has made it a condition on withholding judgment or suspending sentence that the defendant take the pledge for a period varying from six months to one year. At the close of the year 101 persons had taken the pledge, and of this number all but ten had kept the same faithfully.

In the severe cases where the defendant was bordering on delirium tremens, he was committed to the workhouse and the superintendent informed of his condition. While there are no special arrangements for the treatment of inebriates at the workhouse, Superintendent O'Connor has successfully provided a separate department for such cases. With these inadequate facilities a splendid work is now being done among this class of unfortunate and harmless offenders.

Medical and Surgical Treatment.

Men suffering from physical defects have frequently been before the court charged with offenses entirely out of harmony with their antecedents and environments. In these cases the court has been able to call to his assistance some of the best-known surgeons of the city. During the year three surgical operations were performed. Two of these were brain operations and one was sterilization for degeneracy. Three additional cases were successfully treated at private institutions for the drug and liquor habits.

Separate Trials for Women.

Acting upon the suggestion of Amos W. Butler and Demarchus C. Brown, the court set aside Wednesday afternoons for the separate trials of women and girls. A woman probation officer maintains an adequate system of investigation and supervision.

During the seven months that the work among women and girls has been in charge of a probation officer, 139 cases have been investigated, and of that number only 11 were imprisoned, and adequate supervision provided for 70 during the probation period.

In 18 cases of drunkenness, under the supervision of the probation officer, pledges were taken, and all but three have kept the same faithfully. In 15 cases of country girls coming to Indianapolis and falling into bad company, resulting in their arrest, arrangements were made, by this officer, for the return of these girls to their homes in various parts of the state. In the balance of these cases investigation disclosed that the defendants were more sinned against than sinning and the cases were dismissed.

Restitution.

The criminal code is absolutely silent upon the question of recovery for loss or damage to property and injuries to the person growing out of criminal acts except that in cases of malicious trespass the court may fine a defendant a sum equal to twice the amount of the property damaged. To fine a person double the value of the property damaged and because of his failure to pay the same, place the additional burden on the citizen of supporting him in the workhouse or jail seems in itself an absurdity.

As a part of the probation plan the court requires every person charged with any offense involving the loss or damage to property and injuries to the person to make full and complete restitution to the injured party before the final disposition of the case. Upon a proper showing that restitution has been made the court is then in a position to take such action as the other facts in the case justify. Under this plan more than \$1,800 in restitution has been recovered and turned over to the proper parties.

Results.

The results of the operation of any system of justice are not to be measured by dollars and cents.

During the year 1910 the court disposed of more than 15,000 cases. Notwithstanding this tremendous volume of business there was a saving to the county in the cost of feeding prisoners in the county jail of \$1,393.61 and in the maintenance of the workhouse, \$4,631.95.

Yet the reduction by fifty per cent. of the number of commitments of persons to the workhouse, jail and correctional department of the woman's

prison speaks with far greater force in favor of the probation system than any saving in dollars and cents, for of greater significance to the community is the moral uplift.

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Obvious errors and omissions in punctuation have been fixed.

Any inconsistencies in spelling have been retained.

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